

Judgment Sheet
IN THE LAHORE HIGH COURT
RAWALPINDI BENCH RAWALPINDI
(JUDICIAL DEPARTMENT)

Crl. Appeal No. 582-J of 2016
(Rashed alias Chand, etc. vs. The State)
and
Capital Sentence Reference No. 03-T of 2016
(The State vs. Rashed alias Chand, etc.)

JUDGMENT

Date of hearing: 25.05.2021

Appellant by: Barrister Osama Ameen Qazi, Shahbaz Shah

State by: Mr. Naveed Ahmad Warraich, Deputy District Public Prosecutor.

Complainant by: Syed Intikhab Hussain Shah, Advocates.

Research Assistance: Rana Aftab Ahmed, Research Officer

Ali Zia Bajwa, J. Rashed alias Chand, Aamer Bhatti and Fiaz alias Masha (hereinafter “appellants”) involved in case FIR No.730/2015 dated 05.08.2015 registered under Sections 302& 34 of Pakistan Penal Code, 1860 and Section 7 of Anti-Terrorism Act, 1997 at Police Station Sadiqabad, Rawalpindi, were tried by learned Judge, Anti-Terrorism Court-II, Rawalpindi, who vide judgment dated 08.06.2016 convicted and sentenced them, the detail of which is as under: -

- (i). Under Section 449 read with Section 34 PPC to suffer rigorous imprisonment for 10-years and to pay fine of Rs.50,000/- each and in default whereof to further undergo imprisonment for 03-months.
- (ii). Under Section 302 read with Section 34 PPC to suffer death sentence as Ta'zir.
- (iii). Under section 7(1)(a) read with 21-I of the Anti-Terrorism Act, 1997 to suffer death sentence.
- (iv). Under section 7(1)(b) read with 21-I of the Anti-Terrorism Act, 1997 to suffer life imprisonment along with fine of Rs.50,000/-.
- (v). Under section 13 of Pakistan Arms Ordinance XX of 1965 read with Section 21-M of ATA, 1997 to suffer imprisonment for 07-years along with fine of Rs.30,000/- and in default whereof, to undergo imprisonment for 03-months each.
- Apart from the above-mentioned sentences, appellant **Aamir Bhatti** was also convicted under **Section 354 PPC** and sentenced to undergo rigorous imprisonment for 2-years along with fine of Rs.20,000/- and in default whereof to further undergo imprisonment for 02-months.
- Benefit of Section 382-B Cr.P.C was given to all the appellants in the sentences awarded under PPC.
- All the sentences, except death sentences, were directed to run concurrently.”

Assailing their conviction and sentences, appellants preferred **Criminal Appeal No.582-J of 2016**, whereas trial court sent reference under section 374 of Code of Criminal Procedure, 1898 which was numbered as **Capital Sentence Reference No.03-T of 2016** for the confirmation or otherwise of death sentences inflicted upon the appellants. Since both these matters are *inter se* connected, hence, both are being decided through this single judgment.

2. Succinctly stated, the facts of the prosecution case as unveiled by Muhammad Sajjad Khan Niazi (PW.15) in FIR (Exh.PA/1) are that on 05.08.2015 at about 01:00 p.m., when he came out of his house to visit the adjacent house of his brother Tahir Khan Niazi (deceased), he saw a person present there, sitting on a motorcycle without having a number plate, who entered in the house of deceased and complainant also followed him; that at the door of TV

Lounge, he saw that a person with pistol was catching hold of complainant's sister in law (Bhabi) while a third person was pinned to the ground by his deceased brother; that the person who had entered into the house, suddenly fired a shot at left flank of his deceased brother, due to which he fell down; that on his hue and cry, all the three accused rushed out in the garage while pointing the pistols at the complainant and fled away from the place of occurrence on the motorcycle; that he took his brother in a vehicle to Benazir Bhutto Hospital (BBH), Rawalpindi for medical treatment, but he succumbed to the injuries at the hospital.

3. The law was set into motion on the statement/Fard Biyan (Exh.PA) made by Muhammad Sajjad Khan Niazi (PW.15) before Allah Yar Inspector/SHO (PW.17) during his visit to BBH Rawalpindi. Allah Yar Inspector sent Fard Biyan to the police station through Hassan Akhtar 1973/C for the registration of formal F.I.R. He examined the deceased and prepared the inquest report (Exh.PL/3), drafted application for postmortem examination (Exh.PL/2) and handed over the dead body to Sikandar Hayat ASI & Muhammad Younis 1736/C (PW.3) for autopsy. Thereafter, he inspected the place of occurrence, recorded statements of prosecution witnesses under section 161 Cr.P.C., prepared rough site plan (Exh.PT), secured blood stained earth through cotton and one crime empty of pistol .30 bore (P.3) vide memos (Exh.PU) and (Exh.PV), respectively. He also took into possession a live bullet of pistol .30 bore vide memo (Exh.PX), from the car porch, a piece of smoked cigarette (butt of cigarette) and a cigarette-case containing eight cigarettes of Gold Leaf brand vide memo (Exh.PY). On 08.08.2015, he got prepared scaled site plan of place of occurrence (Exh.PB) and Exh.PB/1) from draftsman Khurram Shahzad (PW.2). On 14.08.2015, he along with other police officials

arrested the appellants while they were riding on a motorcycle and from their personal search different articles including unlicensed Pistols and live bullets (P-1 to P-25) were recovered, which were secured vide memos of possession (Exh.PAA) to (Exh.PEE), while motorcycle was taken into possession vide memo of possession (Exh.PFF). He also got conducted the identification test/parade of the appellants, after observing all the legal formalities. After completion of investigation, report under section 173 Cr.P.C. was submitted with the trial court.

4. In order to prove its case against the appellants, the prosecution produced as many as eighteen witnesses including **Muhammad Sajjad Khan Niazi (PW.15)** and **Mst. Saadia Anjum (PW.16)** who furnished ocular account of occurrence, **Muhammad Razaq (PW.15)**, who saw the appellants fleeing from the place of occurrence, **Dr. Gulab Shah (PW.7)** who furnished the medical evidence, **Muhammad Ismail Jasra, Magistrate Section 30 (PW.11)**, who had recorded the judicial confessional statements of appellants, **Sardar Hamid Hussain, the then magistrate**, under whose supervision, Identification Parade/test of appellants was carried out and **Allah Yar Inspector (PW.17)** who was Investigating Officer of the case. The remaining witnesses, more or less, were formal in nature.

5. After the completion of prosecution evidence, the learned trial court examined the appellants under section 342, Cr.P.C. They confronted the prosecution evidence with the denial, however, Rashed alias Chand, in response to question 'why this case against you and why the PWs deposed against you' made the following reply:-

“I do not know why I am involved in this case. On 3rd day of August, 2015, I with Fayyaz accused purchased narcotics injection from somewhere and had also administered to him.

On the way police personnels apprehended us and took us to police station. Thereafter they kept us confined illegally in the police station. They kept on inquiring from us about injections and for the reasons using the same. We were kept in a room in front of which there was parking lot. I cannot even identify the place where we were kept. Thereafter, they involved us in this case for the reasons best known to them.”

The remaining appellants rallied behind appellant Rashed alias Chand. Appellants neither opted to make statements under section 340 (2) Cr.P.C. nor opted to produce any evidence in their defense. On the conclusion of trial, appellants were convicted and sentenced as mentioned above, hence, the instant appeal and reference for confirmation of capital sentence.

6. Challenging the convictions of appellants, it is contended by their learned Counsel, that no reliance can be placed upon the testimony of alleged eye-witnesses as they are interested and inimical witnesses; that the evidence of identification test suffers from multiple legal infirmities, thus same is of no legal worth; that the confessional statements of appellants are also not worthy of any credence as these were obtained through coercion; that during the trial, recoveries effected from the appellants were proved to have been planted by the police; that in fact the actual culprits could not be traced by the police and later, the appellants were made scape-goats to release the pressure arising out of the murder of a senior judicial officer; that though reasonable doubt emanated from the prosecution evidence but its benefit was not extended to the appellants. With these submissions, it was urged by the learned counsel for the appellants that conviction awarded to the appellants is not sustainable, thus be set-aside.

7. On the other hand, learned law officer assisted by learned counsel for the complainant came forward with the submissions that instant case is an outcome of a crime report, registered with

promptitude; that though the appellants were not nominated in the FIR but the immediate reporting of crime to police proves the presence of witnesses at the spot; that admittedly, witnesses of occurrence has no previous enmity with the appellants and they have rightly picked all the appellants as culprits of crime during identification test proceedings while assigning them specific roles played by each of them during the occurrence; that medical evidence is in absolute conformity with the ocular account of prosecution; that the confessional statements of the appellants go long way in proving their guilt; that corroboration, if any, can be well extracted from the report of PFSA, according to which pistol recovered from Fiaz appellant matched with the crime empty secured from the spot; that since the appellants committed the assassination of a judicial officer with full planning, thus they deserve no leniency. With these submissions, learned law officer urged that the appeal filed by the convicts be dismissed and their death sentences be confirmed.

8. Arguments heard. Record perused.

9. The roots of case lay in an unfortunate incident happened on 05.08.2015 during which Muhammad Tahir Khan Niazi, a serving Additional District and Sessions Judge, was murdered by three unknown assassins. The incident was witnessed by brother and wife of the deceased, namely, Muhammad Sajjad Khan Niazi and Sadia Anjum (PW.15 & PW.16). Similarly, the servant of deceased, namely, Muhammad Razzaq (PW.14) also claimed to have seen the culprits on the corner of the street while fleeing from the place of occurrence. Appellants were arrested on 14.08.2015 and were immediately sent to judicial custody for holding of identification test proceedings, during which they were rightly picked up by the witnesses as culprits of crime. Later, on 27.08.2015, the appellants also got recorded their

confessional statements under Section 164 Cr.P.C. before Muhammad Ismail Jasra, Magistrate (PW.11). In addition to the above incriminating evidence, case of prosecution rests upon the recovery of pistols from the appellants, out of which the one recovered from appellant Fiaz was later found by PFSA to have matched with crime empty secured from the crime scene.

10. While making in-depth analysis of the ocular account, it is noticed that though Muhammad Sajjad Khan Niazi and Sadia Anjum (PW.15 & PW.16) are closely related with deceased but admittedly neither they were having any acquaintance nor enmity with the appellants. Though it was argued that the relationship of eyewitnesses with the deceased makes them interested witnesses but we are not impressed with such submission as it runs contrary to the settled principles laid down for the appraisal of evidence. By now it is settled law that testimony of closely related witness cannot be discarded merely on the ground of such relationship with the deceased. This principle has been expounded and reiterated in a chain of judicial verdicts of august Supreme Court. In a recent decision in ABDUL KHALIQ Vs. The STATE cited as 2021 SCMR 325, august Court has reiterated this principle in following words:

“.....mere relationship of a witness with the deceased did not undermine the value of his testimony, if otherwise it was found with a ring of truth...”

Same principle was elaborated by august Supreme Court in NASIR IQBAL @ NASRA and another Vs. The STATE cited at 2016 S C M R 2152 and TALIB HUSSAIN and others Vs. THE STATE and others cited as 2009 S C M R 825.

The acclaimed presence of eyewitnesses at the spot is the most important factor, hence we have eloquently dilated upon it. Sadia

Anjum (PW.16) was admittedly the inhabitant of the house, within the four walls of which, her slain husband received fatal shot. Similarly, Sajjad Khan Niazi (PW.15) was having abode adjacent to the house of deceased. From the cross-examination of both the eyewitnesses, the defence failed to bring on record any material so as to challenge their acclaimed presence at the crime scene. Presence of both these eyewitnesses is found by us to have been proved unambiguously. There is yet another factor which provides strength to the claim of eyewitnesses about their presence at the spot. In this regard, it is observed by us that the incident occurred at about 1:00 p.m., and the deceased was shifted to DHQ Hospital, Rawalpindi immediately but he died midway whereas autopsy of deceased was conducted by Dr. Ghulab Shah (PW.7) at about 2:45 p.m. Such swift shifting of the deceased to hospital and holding of post-mortem examination without afflux of any delay also positively reflects upon the acclaimed presence of eyewitnesses at the spot.

11. We are mindful of the fact that the appellants were not nominated either in FIR (Exh.PA/1) lodged on the complaint of Muhammad Sajjad Khan Niazi (PW.15) or in the 161 Cr.P.C. statement of Sadia Anjum (PW.16). The ultimate veil was lifted from the identity of culprits through the identification test proceedings held on 20.08.2015 within the precincts of Central Jail, Adyala, under the supervision of Sardar Hamid Hussain, the then Magistrate (PW.12). During these identification proceedings all the three appellants were identified by two eyewitnesses as perpetrators of this unfortunate occurrence. Needless to mention here that the identification proceedings can be described as the backbone of prosecution case and have direct bearing upon the acceptance or rejection of ocular account. Evidence of identification test derives its admissibility from

Article 22 of Qanun-e-Shahadat Order, 1984 and it is conducted in cases where assailants are not previously known to the eyewitnesses. The procedure to hold identification proceedings is provided in Chapter 11 Part-C, Volume-III of Rules and Orders of the Lahore High Court, Lahore. For correctly dilating upon the legal worth of identification test proceedings conducted in the instant case, we feel a pressing need to reproduce salient points of instructions laid down in Rules and Orders of Lahore High Court, which are as under-

- List of all persons/dummies included in the parade should be prepared containing parentage, address and occupation of each member of the parade.
- When any witness identifies a member of the parade, the Magistrate should note in what connection he is identified.
- If a witness identifies a person wrongly, it should be recorded so instead of mentioning that the witness identified nobody.
- Magistrate should record complaint/objection of suspect, if any.
- The Magistrate should state precautions taken to prevent the witnesses from seeing the suspect before commencement of ID parade.
- Magistrate should ensure that no communication to facilitate identification of suspect is made to any witness, awaiting his turn to identify.
- Magistrate should also note that whether dummies are inmates of jail or not.
- It is fair both to the prosecution and the accused that the members of the parade should be presented in a normal state and, if possible, the dress of the parade should have resemblance to the accused as he appeared to the witness at the time of the commission of the offence.
- At the end the Magistrate should append a certificate regarding his proceedings.

Further, guidelines are also provided in most exhaustive judgment of august Supreme Court in Kanwar Anwaar Ali Special Judicial Magistrate's case reported at PLD 2019 SC 488 on the subject, which are re-produced hereunder as ready reference.

“23. Although there is no law, which prescribes any such precautions yet the necessary guidelines are available in the form of executive instructions and judicial pronouncements. Some of them are summarized as under:-

(a) Memories fade and visions get blurred with passage of time. Thus, an identification test, where an unexplained and unreasonably long period has intervened between the occurrence and the identification proceedings, should be viewed with suspicion. Therefore, an identification parade, to inspire confidence, must be held at the earliest possible opportunity after the occurrence;

(b) a test identification, where the possibility of the witness having seen the accused persons after their arrest cannot be ruled out, is worth nothing at all. It is, therefore, imperative to eliminate all such possibilities. It should be ensured that, after their arrest, the suspects are put to identification tests as early as possible. Such suspects should preferably, not be remanded to police custody in the first instance and should be kept in judicial custody till the identification proceedings are held. This is to avoid the possibility of overzealous I.Os. showing the suspects to the witnesses while they are in police custody. Even when these accused persons are, of necessity, to be taken to Courts for remand etc. they must be warned to cover their faces if they so choose so that no witness could see them;

(c) identification parades should never be held at police stations;

(d) the Magistrate, supervising the identification proceedings, must verify the period, if any, for which the accused persons have remained in police custody after their arrest and before the test identification and must incorporate this fact in his report about the proceedings;

(e) in order to guard against the possibility of a witness identifying an accused person by chance, the number of persons (dummies) to be intermingled with the accused persons should be as much as possible. But then there is also the need to ensure that the number of such persons is not increased to an extent which could have the effect of confusing the identifying witness. The superior Courts have, through their wisdom and long experience, prescribed that ordinarily the ratio between the accused persons and the dummies should be 1 to 9 or 10. This ratio must be followed unless there are some special justifiable circumstances warranting a deviation from it;

(f) if there are more accused persons than one who have to be subjected to test identification, then the rule of prudence laid down by the superior Courts is that separate identification parades should ordinarily be held in respect of each accused person;

(g) it must be ensured that before a witness has participated in the identification proceedings, he is stationed at a place from where he cannot observe the proceedings and that after his participation he is lodged at a place from where it is not possible for him to communicate with those who have yet to take their turn. It also has to be ensured that no one who is witnessing the proceedings, such as the members of the jail staff etc., is able to communicate with the identifying witnesses;

(h) the Magistrate conducting the proceedings must take an intelligent interest in the proceedings and not be just a silent spectator of the same bearing in mind at all times that the life and liberty of someone depends only upon his vigilance and caution;

- (i) the Magistrate is obliged to prepare a list of all the persons (dummies) who form part of the line-up at the parade along with their parentage, occupation and addresses;
- (j) the Magistrate must faithfully record all the objections and statements, if any, made either by the accused persons or by the identifying witnesses before, during or after the proceedings;
- (k) where a witness correctly identifies an accused person, the Magistrate must ask the witness about the connection in which the witness has identified that person i.e. as a friend, as a foe or as a culprit of an offence etc. and then incorporate this statement in his report;
- (l) and where a witness identifies a person wrongly, the Magistrate must so record in his report and should also state the number of persons wrongly picked by the witness;
- (m) the Magistrate is required to record in his report all the precautions taken by him for a fair conduct of the proceedings and
- (n) the Magistrate has to give a certificate at the end of his report in the form prescribed by CH.II.C. of Vol. III of Lahore High Court Rules and Orders.”

We have examined the identification test proceedings on the touchstone of guidance and instructions laid down in High Court Rules and Orders as well as by the Hon’ble Apex Court in **Kanwar Anwaar’s case** (supra). Appellants were arrested by Malik Allah Yar Inspector/SHO (PW.17) on 14.08.2015 and when they made disclosure about their involvement in the instant crime, their faces were covered immediately and they were shifted to Police Station. On the following day i.e. on 15.08.2015, the appellants were produced in the Anti-Terrorism Court Rawalpindi along with an application (Exh.PGG) for lodging them in judicial custody so as to hold their identification parade. It reasonably evinces from the above facts that all necessary precautions were taken by police so as to exclude any possibility of interaction of eyewitnesses with the appellants. It is evident from the memo of identification (Exh.PR) that best possible measures were taken by the Magistrate to ensure that eyewitnesses should not have even a glimpse of suspects/appellants before the ID parade proceedings. Further, ID parade of each appellant was held separately which further provides credibility to the proceedings. All

the appellants were identified by the eyewitnesses in reference to the roles performed by them and more importantly Fiaz alias Mansha was burdened with the responsibility of inflicting fatal pistol shot injury to the deceased. To be precise, no anomaly is discernible from the identification test proceedings which may persuade us to discard it.

12. While concluding the ocular account, we have no hesitation to hold that presence of eyewitnesses at the spot is established beyond shred of any ambiguity; they have no reason to falsely grill the appellants in the murder charge of their close relative; the identification proceedings are free from any shortcoming or lacuna, thus are to be accepted. In the wake of proved presence of eyewitnesses at the spot and in the absence of any previous enmity, all the hypothesis of substitution of real culprits are laid to rest. The ocular account is also found by us to be in absolute conformity with medical evidence and this is another factor which adds further credence to the case of prosecution.

13. The ocular account of eyewitnesses is further supported by the evidence of Muhammad Razzaq (PW.14), who came across the appellants at the corner of street while they were retreating from the crime scene. Muhammad Razzaq (PW.14) was the domestic servant of deceased so his presence at the said place is not open to any exception. He was also one of the participants in the identification proceedings and committed no mistake in picking up the appellants. The evidence of Muhammad Razzaq is in the nature of Wajtakar, the probative strength of which rests in the doctrine of *res gestae* provided under Article 19 of Qanun-e-Shahadat Order, 1984. According to the foregoing provision, acts or declarations, accompanying or explaining the transaction or the facts- in-issue are treated as part of the doctrine of *res gestae* and are admitted as evidence and facts which, though not

in issue, are so connected with the facts-in-issue as to form part of the same transaction are relevant. Doctrine of *res gestae*, provides sanction to certain classes of evidence. '*Res Gestae*', is a Latin phrase which means that relevant portion of the event, which is connected directly or indirectly with the main transaction of the event. Before dilating further upon the issue, some important definitions of this doctrine are provided below:-

- *'Res Gestae' comprehends all facts constituting a part of transaction and all facts relevant, explanatory or illustrative of or characterizing act or principal fact which was subject of or for decision"* (Words And Phrases. Permanent Edition 37, 1658 to Date, Published By Thompson-West, At P-37 W&P-265)
- *"The facts involved in the determination of an issue are sometimes called the res gestae. They includes acts, declarations and incidents which themselves constitute or accompany and explain, the facts or transactions at issue. Halsbury's Laws of England, 3rdEdn., Vol. 15, p.263."* (Encyclopaedic Law Dictionary, By Dr. A R Biswas, 3rd Edition 2008, Publishes By Wadhwa Nagpur at Page 1263)
- *"Where the witness was standing near the place of occurrence when the shooting took place as a by-stander, a statement made by him shortly after the occurrence is a relevant fact. Statement made by a by-stander while still under the influence of the principal transaction is admissible as res gestae".* (Advanced Law Lexicon, By P Ramanatha Aiyar, 4th Edition, Published By Lexis Nexis Butterworths Wadhwa, At Page-4197)
- Indian Supreme Court in *Bairon Singh's case cited as AIR 2009 SC 2603*, defined the term in following words:

"The rule embodied in Section 6¹ is usually known as the rule of res gestae. What it means is that a

¹Section 6 of Indian Evidence Act is corresponding to Article 19 QSO, 1984

fact which, though not in issue, is so connected with the fact in issue "as to form part of the same transaction" becomes relevant by itself."

This doctrine is based upon the assumption that every relevant part of the chain of events is considered before the final disposal by a judicial forum dealing with the criminal cases, so that no evidence can be discarded on the ground of irrelevant considerations. History of doctrine of *res gestae* can be traced back in the year 1693, in **Thompson v. Trevanion(1693 Skin LR 402)**. John Henry Wigmore in his most celebrated book on evidence has provided a brief history of this doctrine in following words: -

"This Exception had its earliest illustration in Lord Hol's ruling in Thompson v. Trevanion, in 1693; so that the doctrine may be said to have been recognized before the phrase "res gestae" came into use. Nevertheless, the development of this doctrine did not begin until after Aveson v. Kinnaird, in 1805, when the phrase in question had begun to be freely used in connection with it; and only since the middle of the 1800s has it been possible to say that this Exception was firmly established..." (Wigmore on Evidence, Vol. VI, 3rdEdn., Published by Little, Brown And Company in 1940, at page-1768)

The test to apply this doctrine is that a fact to be a part of same transaction with that of fact-in-issue should be spontaneous, ruling out any possibility of concoction. In **Gentela Vijayavardhan Rao's case²**, Indian Supreme Court has elaborated this concept (provided in section 6 of Evidence Act. 1872), in following words:-

"The principle or law embodied in Section 6 of the Evidence Act is usually known as the rule of res gestae recognized in English Law. The essence of

²GentelaVijayavardhan Rao And Anr vs State Of Andhra Pradesh, (1996 SC 2791=1996 CrLJ 4151)

the doctrine is that fact which, though not in issue, is so connected with the fact- in-issue "as to form part of the same transaction-becomes relevant by itself. This rule is, roughly speaking, an exception to the general rule that hearsay evidence is not admissible. The rationale in making certain statement or fact admissible under Section 6 of the Evidence Act is on account of the spontaneity and immediacy of such statement or fact in relation to the fact in issue. But it is necessary that such fact or statement must be part of the same transaction."

The evidence of Muhammad Razak, **PW.14**, being a wajtakkar witness, is relevant under the doctrine of *res gestae* as this witness came across the appellants while they were fleeing from the vicinity of crime while brandishing their weapons. Thereafter, Saadia Anjum (PW.16) told him that deceased had been shot. Instance of seeing the accused fleeing from the place of occurrence by this witness and utterance of Sadia Anjum (PW.16) is sufficiently spontaneous so as to form evidence of *res gestae*, thus is admissible.

14. Another important piece of evidence against the appellants is their confessional statements got recorded under section 164 Cr.P.C. The confessional statement of an accused is recorded in accordance with mandatory provision of 364 Cr.P.C. and in consonance with guidelines provided under Chapter 13, Vol.III of the Court Rules and Orders (Lahore High Court, Lahore).Confessional statements of all three appellants were recorded separately by Muhammad Ismail Jasra, Magistrate Sec. 30, Rawalpindi (PW.11) on 27.08.2015 as all the three appellants were separately produced before the Magistrate and each of them was apprised that he was under no compulsion to make any confession and that, the same can be used against him. Sufficient time was provided to each appellant to have a

second thought but they remained persistent with their desire to make such statement. Each appellant provided all the details about the motive/background of occurrence, mode and manner of crime committed by them. A close scrutiny of these confessional statements leaves not an iota of doubt that while recording these statements, all the precautionary measures provided in law, were taken. In order to make a judicial confession basis for awarding conviction, the prosecution is required to prove that such confession was made voluntarily and it contains true account of the occurrence. If any reference in this regard is needed that can be made to the case reported as **Hashim Qasim case**³, wherein the Hon'ble Supreme Court held that:

“It is trite law that for accepting a confession, two essential requirements must be fulfilled i.e. that the confession was made voluntarily, it was based on true account of facts, leading to the crime and the same was proved at the trial. The superior courts have also given strict guidelines for the Magistrate, recording confession, to be followed without any exception which need not be repeated herein, because long line of authorities on this point is already in the field.”

It is pertinent to mention that voluntary nature of a confessional statement is to be extracted from the manner in which it is recorded. Likewise, the afflux of time with which such confession is retracted is another factor which reflects upon its voluntary nature. In the instant case, the appellants retracted from their confessional statements at the time of their 342 Cr.P.C. examination. Strangely, even during the cross-examination of Muhammad Ismail Jasra Magistrate (PW.11) no suggestion was put from which it may allude that the appellants never made any judicial confession. So far as, the truth of a confessional statement is concerned, it is a question of fact and is to be gathered from the attending circumstances of the case. We

³Hashim Qasimv. The State, (2017 S C M R 986)

do not want to recapitulate the contents of canvassed confessional statement in the instant para but the fact remains that the appellants provided all necessary details of crime, including the background in which it was committed. Even otherwise, the confessional statements of Rashed alias Chand, Aamer Bhatti and Fiaz alias Mansha (Exh.PN, Exh.PO & Exh.PP) respectively have been fully corroborated by the oral version of eyewitnesses, identification proceedings and medical evidence. As per report of PFSA (Exh.PKK) the pistol (P.19) recovered from Fiaz alias Mansha (appellant) was found wedded with the crime empty secured from place of occurrence during spot inspection. Such positive report of PFSA is another factor which provides credence to the tale of incident mentioned by the appellants in their respective confessional statements. Precisely, the flawless evidence of judicial confession has persuaded us to accept it without scintilla of exaggeration. It is settled law by now that a confessional statement, if true, voluntary, and containing full details of the events of an occurrence, even if retracted afterwards, can be made basis of conviction even in case of capital punishment. In **Shaukat Ali case**⁴ death sentence was awarded to the accused person by learned trial court mainly on the basis of his retracted confessional statement, august Supreme Court also maintained the conviction by holding that:-

“...Seemingly voluntary without duress or inducement; inculpatory in nature the confessional statement reflects a complete and truthful narration of event leading to deceased's death. The learned Magistrate has taken due care to administer necessary warnings to the appellant and recorded each detail thereof in his own hand. It does not appear to have been fabricated to advance prosecution's case and thus can be squarely relied upon without any reflection on safe administration of criminal justice. It is by now well-settled that a retracted confession can form basis for conviction if found voluntary and truthful...”

⁴Shaukat Ali v. The State and Other,(PLD 2019 SC 577)

Likewise, in **Dadullah and another case**⁵ the august Supreme Court has expounded this principle in following words:-

“8. ...Notwithstanding the procedural defect in the confessional statement, if any, a judicial confession if it is found true, voluntary and confidence inspiring, could safely be made basis for conviction. Retraction of confessions by the accused seems to be palpably false and incorrect only to save their skin and the only conclusion that could be drawn is that confessional statements were recorded by the accused voluntarily.”

15. Prosecution has also relied upon the evidence of CCTV footage and CDR pertaining to the cell phones of appellants and we have also given our considered thought to the admissibility of such evidence. So far as, the CCTV Footage is concerned, admittedly, it was not containing the clear visuals of the incident and the facial features of the culprits were also blurred. On this score alone, the evidence of CCTV footage is destined to be discarded. As regards, Call Data Record no person or record keeper of the cellular company appeared in the dock to provide legal sanctity to such evidence, thus we are constrained to declare it too, as inadmissible.

16. Prosecution has also relied upon the report of Deoxyribonucleic Acid (DNA) Test of items recovered from place of occurrence i.e. a butt of cigarette and a cigarette-case with the buccal swabs of the appellants. DNA is a particle that encrypts the genetic information in all living beings and is the blueprint of an individual. It can be obtained from any biological material such as bone, blood, semen, saliva, hair, skin, etc. Generally, when DNA profile of a sample found at the scene of crime matches with DNA profile of the suspect, it can generally be concluded that both samples have the same biological origin so, in cases where a suspect is identified, a sample of that person's DNA can be compared to evidence collected

⁵Dadullah and Another v. The State,(2015 SCMR 856)

from the crime scene. The results of this comparison may help establish that the suspect committed the crime. In Modi's Medical Jurisprudence and Toxicology⁶, biology of DNA has been described as under:-

“DNA or Deoxyribonucleic Acid consists of four nitrogenous bases- adenine, thymine, cytosine, guanine and phosphoric acid arranged in a regular structure. It is a polymer of nucleotides, which are the units strung together to form a DNA strand. The backbone of a DNA strand is formed by a sugar base. Component and phosphate group. The DNA molecule is composed of two DNA strands coiled in a double spiral (helix).”

Further, nature and characteristics of DNA profiling was very well elaborated by Lord Justice Phillips in **Alan James Doheny Gary Adams case**⁷ in following words:-

“Deoxyribonucleic acid, or DNA, consists of long ribbon-like molecules, the chromosomes, 46 of which lie tightly coiled in nearly every cell of the body. These chromosomes - 23 provided from the mother and 23 from the father at conception, form the genetic blueprint of the body. Different sections of DNA have different identifiable and discrete characteristics. When a criminal leaves a stain of blood or semen at the scene of the crime it may prove possible to extract from that crime stain sufficient sections of DNA to enable a comparison to be made with the same sections extracted from a sample of blood provided by the suspect...”

Now, in our jurisdiction too, apex Courts have started encouraging to have recourse to such like modern scientific and forensic evidentiary methods. In a recent decision of august Supreme Court in **Ali Haider Alias Papu case**⁸, august Court has elaborated the importance of this modern-day scientific evidence in following words:-

⁶(Modi's Medical Jurisprudence and Toxicology, Edited by B V Subrahmanyam, Twenty Second Edition, page no.88)

⁷Regina v. Alan James Doheny Gary Adams, [1996] EWCA CRIM 728

⁸Ali Haider Alias PapuV. Jameel Hussain and Others, (PLD 2021 SC 362)

“5. The most significant advancement in criminal investigation since the advent of fingerprint identification is the use of DNA technology to help convict criminals or eliminate persons as suspects. DNA as a scientific evidence means 'deoxyribonucleic acid.' DNA can be found in the human body and samples from semen, hair, blood, flesh can establish a DNA matching with the DNA of another human being. Each human being has a unique DNA pattern, which is acquired by inheriting it from the biological parents. DNA analyses on saliva, skin tissue, blood, hair, and semen can now be reliably used to link criminals to crimes.....In criminal cases, like rape, murder, etc., timely medical examination and proper sampling of body fluids followed by quality forensic analysis can offer irrefutable evidence. Criminal justice system is in search for the truth. The development of DNA technology furthers the search for truth by helping police and prosecutors in the fight against violent crimes. Through the use of DNA evidence, prosecutors can establish the guilt of accused and at the same time, DNA aids the search for truth by exonerating the innocent.”

Since DNA of every human being remains same in all areas of its body, it cannot be altered or changed in any way, meaning thereby it is effectively a form of evidence, which is resilient to any form of tampering. So, this type of forensic evidence is of great help in criminal cases, where identity of an accused is suspicious. This principle was expounded by august Supreme Court in **Ali Haider Alias Papu case** *supra*, in following words:-

“10. DNA evidence is considered as a gold standard to establish the identity of an accused. As a sequel of above discussion, it can safely be concluded that DNA Test due to its accuracy and conclusiveness is one of the strongest corroborative pieces of evidence....DNA test with scientific certainty and clarity points towards the perpetrator and is, therefore, considered one of the strongest corroborative evidence today, especially in cases of rape. The usefulness of DNA analysis, however, depends mostly on the skill, ability and integrity shown by the investigating officers, who are the first to arrive at the scene of the crime. Unless the evidence is properly documented, collected, packaged and preserved, it will not meet the legal and scientific requirements for admissibility into a court of law.”

However, the question as to whether DNA tests are virtually infallible may be a moot question, but the fact remains that such test has come to stay and is being used extensively in the investigation of crimes and the Court often accepts the views of the experts, especially when cases rest on circumstantial evidence. In present case a cigarette-case and a butt of semi-smoked cigarette was taken into possession by the I.O. from the place of occurrence and finger prints were also obtained and secured from the switch board of the room where deceased was present when accused persons entered his house.

Although a positive forensic report of DNA test is available on the file which establishes that original source of DNA sampling of semi-smoked cigarette Butt is appellant Fiaz @ Mansha while sample of finger prints obtained from switch boards are of Appellant Rashed @ Chand but it is unfortunate to note that said articles of DNA sampling and fingerprints samples, were not sent to PFSA instantly rather the same was done only after the arrest of appellants and after obtaining their buccal swab standards and finger print samples. This sole fact has shaken the credibility and evidentiary value of report of Deoxyribonucleic Acid (DNA) Test and fingerprint matching report and these reports have proved a futile exercise because, although these tests provide strong corroboration to the stance of prosecution in identifying the accused person(s), but in case of any forensic evidence, concerned authorities must adhere to the fundamentals of preserving specimens, labeling, and the chain of custody and also to comply with any constitutional or statutory requirements regulating the collection and handling of samples. For collection, preservation, safe custody and dispatching of DNA sampling and fingerprint samples to Forensic Laboratory, same principles will be applicable,

which are applicable in cases of other items/samples collected for forensic opinions.

It is cardinal principle of law that whenever a sample for forensic test is obtained or taken into possession, same should be sent to Forensic Laboratory without any unnecessary and un-explained delay, to rule out possibility of any fabrication or tampering. So judging this piece of evidence of prosecution in view of aforementioned principles of forensic science, we are not inclined to consider this evidence free from doubts, especially when no plausible explanation has been provided by the prosecution as to why these samples were not sent to PFSA with other items and why police authorities did wait for the arrest of the appellants and sent these samples only after taking subsequent samples from the appellants. So, this piece of evidence is also not of worth reliance.

17. Since the question of jurisdiction under Anti-Terrorism Act, 1997 was raised by the defence, hence we have observed in this regard that Tahir Khan Niazi (deceased) had no personal enmity with appellants. Minute scrutiny of confessional statements of all three appellants establishes that, deceased judicial officer was assassinated by the appellants just because of grievance of appellant Fiaz @ Mansha against the deceased in relation to performance of his official duties. This fact is narrated by each of the appellants with full clarity in their voluntary and detailed confessional statements. Hence when deceased judicial officer was done to death in relation to his official duties being a public servant, this act of appellants squarely falls within the ambit of “terrorism” because section 6(2)(n) provides that:

6. Terrorism.-(1) In this Act, “terrorism” means the use or threat of action where:- (a) the action falls within the meaning of sub-section (2); and

-
-
- (2) An “action” shall fall within the meaning of sub-section (1), if it:-
-
-
- (n) involves serious violence against a member of the police force, armed forces, civil armed forces, or a public servant;

18. Gamut of whole prosecution evidence leads to the irresistible conclusion that prosecution has successfully proved the charge against the appellants beyond any shadow of doubt and learned trial court has rightly convicted the appellants on the basis of their voluntary and detailed confessional statements well corroborated by ocular account furnished by eyewitnesses, Medical evidence, Identification Parade and positive report of PFSA, hence, we have no hesitation to uphold the conviction of all three appellants for committing murder of deceased Judicial Officer in furtherance of their common intention.

19. As far as quantum of sentences, to which the appellants are liable, is concerned, case of each appellant needs to be dealt with separately, and same is done hereunder:

i. **Rashed @ Chand:**

Appellant Rashed @ Chand pre-planned the occurrence with other accused persons and also participated in the commission of offences during the whole transaction. So, he was rightly convicted and sentenced for all the offences and his sentences, except the death sentence are maintained along with the amount of each fine. However, as far as death penalties awarded to him under section 302(b) PPC and under section 7(1)(a)ATA read with section 21(I) ATA are concerned, it is admitted fact that

although he was present with the other appellants at the time of occurrence but he did not fire at the deceased. Keeping in view the principle of mitigating circumstance in such like situation as laid down by august Supreme Court in **Muhammad Abbas case**⁹ and **Atta-Ur Rehman case**¹⁰ this fact can be considered as a mitigating circumstance to award a lesser punishment to the appellant, hence his death sentences under section 302 PPC and u/s 7(1)(a) ATA read with section 21(I) ATA, are converted into life sentences and he shall undergo life imprisonment on two counts; one for offence u/s 302 (b) PPC and one for offence u/s 7(1)(a) ATA read with section 21(I) ATA and these sentences shall be condign punishment for these offences. All the sentences of imprisonment of this appellant shall run concurrently except the imprisonment in lieu of fine or compensation. Benefit of section 382-B Cr.P.C, is also extended in his favor.

ii. **Aamer Bhatti:**

Same is the case of appellant Aamer Bhatti as this appellant also pre-planned the offences with other appellants and participated in the commission of offences during the whole transaction. So, he was also rightly convicted and sentenced for all the offences and his sentences, except the death sentences, are maintained along with the amount of each fine but as far as death penalties under section 302(b) of PPC and under section

⁹*Muhammad Abbas v. The State and Others*, (2018 SCMR 397)

¹⁰*Atta-ur Rehman v. State*, (2018 SCMR 372)

7(1)(a) of Anti-Terrorism Act 1997 read with section 21(I) of said Act, are concerned, it is not disputed that although he was present with the other appellants but he also did not fire at the deceased. So again, following the principles of **Muhammad Abbas's case *supra* and Atta-ur Rehman's Case *supra***, this fact can be considered as mitigating circumstance to award a lesser punishment to the appellant, hence his death sentences under section 302 PPC and u/s 7(1)(a) ATA read with section 21(I) ATA, are converted into life sentences and he shall undergo life imprisonment on two counts one for offence u/s 302 (b) PPC and one for offence u/s 7(1)(a) ATA read with section 21(I) ATA and these sentences shall be condign punishment. All the sentences of imprisonment of this appellant shall run concurrently except the imprisonment in lieu of fine. Benefit of section 382-B Cr.P.C, is also extended in his favor.

iii. Fiaz @ Mansha:

Appellant Fiaz @ Mansha is the person who had fired at the deceased and had hatched a plan with the other appellants to commit the murder of deceased judicial officer and thereafter carried out the whole murderous plan. This fact is also admitted by him in his confessional statement and he was rightly identified by the witnesses during the ID parade with the role played by him during the occurrence i.e. firing a bullet shot at the left flank of deceased. Hence, case of present appellant is not at par with other appellants and he deserves no leniency and was rightly convicted and sentenced for all the offences. His death sentence on two counts, one u/s 302(b) PPC and

one u/s 7(1)(a) read with section 21(I) ATA as passed by the learned trial court, with all other sentences of imprisonment, is maintained along with the amount of each fine.

20. To sum up, Capital Sentence Reference to the extent of appellant **Fiaz @ Mansha** is answered in **affirmative** and his death sentence on two counts is **confirmed** while to the extent of other appellants namely **Aamer Bhatti and Rashed @ Chand** the same is answered in **negative** as death sentences of both these accused are **not confirmed** and are **altered into life imprisonments**.

21. Similarly, jail appeal to the extent of accused Fiaz is dismissed being devoid of any force while to the extent of remaining two appellants, same is partly allowed and death sentences on two counts, awarded to Rashed @ Chand and Aamer Bhatti, are converted into life imprisonments on two counts.

(CH. ABDUL AZIZ)
JUDGE

(ALI ZIA BAJWA)
JUDGE

Approved for Reporting

Athar